



STATE OF CALIFORNIA—HEALTH AND HUMAN SERVICES AGENCY
DEPARTMENT OF SOCIAL SERVICES

State Hearings Division

PO Box 944243, MS 9-17-442 Sacramento, CA 94244-2430

PHONE: 800-743-8525 FAX: 1-833-281-0905



GAVIN NEWSOM
GOVERNOR

ACKNOWLEDGEMENT LETTER

April 14, 2026

RE: SHN-██████96

We got your request for a state hearing. Very important information about your hearing rights is included with this letter. Please read it carefully.

You have the right to an in person hearing with the judge. You will be scheduled for a/an Phone hearing.

We will send you another letter with the date and time of your hearing. We have different types of hearings:

- **Telephone** – judge calls you and the hearing is done over the phone.
- **On-Site Phone** - you go to the county office. The judge calls you at the county's office number and the hearing is done over the phone.
- **Video** – you see and hear the judge on your personal computer, laptop, tablet, or smart device. The other parties may participate by phone or video.
- **On-Site Video** - you go to the county office to use the county's video equipment. You see and hear the judge on a screen. The other parties may participate by phone or video.
- **In-Person** – you and the judge will be in the same room. The other parties may participate by phone.

If you want to change to another type of hearing, please call 800-743-8525 right away. If you change the type of hearing, this may cause another delay in getting the hearing decision because we have to reschedule the hearing.

The Agency will contact you to see if they can resolve your appeal without a hearing. You will have your hearing unless you agree to a settlement.

You can request to see your case file, including any information or documents related to the eligibility decisions.

If you have any questions about this letter you may call 800-743-8525, or contact the State Hearings Division in one of the ways below:

- **Online Appeals Account:** <https://acms.dss.ca.gov/acms/>
- **Email:** ScopeOfBenefits@dss.ca.gov
- **Fax Number:** 833-281-0903

- **Mail To:** (Allow at least 5 days for mailing. Keep your originals.)
State Hearings Division
PO Box 944243, MS 9-17-433, Sacramento, CA 94244-2430

Personal Identification Number (PIN)

The PIN below is for this hearing request only. Your PIN can be used to get case information through the automated telephone system. It can also be used to verify yourself when speaking with customer support. You may be asked to provide your PIN and case number together.

Your PIN: XXXXXXXXXX

State Hearings complies with applicable Federal civil rights laws and does not discriminate on the basis of race, color, national origin, age, disability, or sex.

STATE HEARINGS DIVISION

CC:

DEPARTMENT OF HEALTH CARE SERVICES

PUB 412 S - Appeals Regarding Medi-Cal Services (“Scope of Benefits” Hearings) IMPORTANT INFORMATION REGARDING YOUR HEARING RIGHTS

This information is about hearings held by the California Department of Social Services State Hearings Division. This Division holds certain hearings for the Department of Health Care Services (DHCS).

DHCS can take actions affecting your Medi-Cal benefits. Mental Health Plans, Dental Managed care plans, Medi-Cal Managed Care Plans or Substance Use Disorder Programs can also take actions affecting your Medi-Cal benefits. In this document, the word “plan” means any of these plans.

Asking for a State Hearing

DHCS Cases

When DHCS or a plan takes an action affecting Medi-Cal benefits, they must send you a letter explaining what they did, why, and the rules that apply. This is called a Notice of Action or Adverse Benefit Determination. If you do not agree with the action, you can ask for a hearing. You can also ask for a hearing if DHCS or your plan does not send you a notice telling you about an action affecting your benefits.

If you got the notice from DHCS or an agency that is **NOT** a plan, you must ask for the hearing within 90 days from the date of the notice. If you did not ask for a hearing within 90 days, or if you did not get a notice of action, you can still ask for a hearing.

If you ask for a hearing after the 90-day deadline, a judge will decide if we can allow your hearing because the notice did not meet legal requirements, or there was a good reason for asking late. You can ask for a hearing by contacting State Hearings in any of the ways listed below.

Managed Care, Mental Health or Substance Use Cases

If a plan sent you the notice, **you must first file an appeal with the plan before you ask for a state hearing.** You have 60 calendar days from the date of the notice to file the appeal with the plan. You can do this in writing or by calling the plan.

In most cases, the plan has 30 calendar days from the date you file the appeal to give you an answer. If the plan decides your case is urgent, it must give you an answer within 72 hours. If the plan needs more information about your appeal, it can ask you and your provider for up to 14 days more to review your appeal. The plan has to tell you in writing if this is happening.

The plan will send you its decision in writing. This is called a Notice of Appeal Resolution. If you do not agree with the way the plan decided your appeal, you can ask for a state hearing. You have 120 days from the date the plan sent you its Notice of Appeal Resolution to ask for a state hearing.

If you ask for a hearing after the 120-day deadline, a judge will decide if we can allow your hearing because the notice did not meet legal requirements, or there was a good reason for asking late. You can ask for a hearing by contacting State Hearings in any of the ways listed below.

In some cases, you can ask for a state hearing without first appealing to the plan. This is called Deemed Exhaustion. Some examples are:

- The plan did not give you a written notice of their action or the Notice of Appeal Resolution.
- The plan gave you a notice in writing, but the notice did not tell you about **all** your rights.
- The plan made a mistake in the notice or the Notice of Appeal Resolution.
- The plan made a mistake that affects any of your rights.
- The plan did not decide your appeal within 30 days or any extra time you agreed to.
- The plan decided your case is urgent, but did not give you an appeal decision within 72 hours or any extra time you agreed to.

You can ask for a hearing by contacting State Hearings in any of the ways listed below.

New Notices

If you get other Notices of Action or Adverse Benefit Determinations that you disagree with, the new notice may not be covered by your original hearing request. If you want a state hearing for any new notice, contact state hearings by one of the ways listed below. You may ask State Hearings to see if your hearings can be combined.

Updating Your Information

If you move or change your phone number, tell us right away. If we do not have the right information, you may miss a notice or your hearing. Call us at 800-743-8525 or contact us in one of the ways listed below.

Aid Paid Pending

Aid Paid Pending means getting benefits or services at the same level while waiting for your hearing. If you asked for your hearing before DHCS or the plan takes its action, you will get aid paid pending. This does not apply if your approval for a benefit or service is for a limited time or amount.

If your benefits changed, DHCS or the plan must give you a notice. The notice must be “adequate” and written in the language you told DHCS or the plan you wanted for your notices. You can ask DHCS or the plan to interpret any parts of the document written in English for free.

A notice is adequate if it tells you the action being taken, the reason why and the rules that apply. If you did not ask for a state hearing before DHCS or the plan took the action, and you think your notice is not “adequate” or is in the wrong language, contact the plan or DHCS Ombudsman. If they agree, they may give you aid paid pending the decision. Otherwise, you can ask the judge whether you can get aid paid pending.

If you did not get a notice and your benefits changed, contact the plan, or DHCS Ombudsman at 888-452-8609 to ask for aid paid pending.

Expedited Hearings

We can schedule your hearing sooner if you have an urgent health need. This is called an Expedited Hearing. An urgent health need means when waiting for a regular hearing could risk your life or health or ability to reach, keep or get back maximum functioning.

To ask for an expedited hearing, contact us by one of the ways listed below. Your request should include your full name, address, telephone number, and the agency or plan that took the action against you. Tell us why you need an earlier state hearing date and why you cannot wait. If you have chosen an authorized representative, be sure to tell us the representative's name and address.

If your case involves action taken by a plan and we agree that you need an earlier hearing, we will set your hearing the day after we get your case file from the plan. We will call you to tell you the date and time of your hearing. If we cannot reach you at the number you gave us, this may delay your hearing. If we cannot reach you by telephone, we will send you a letter to tell you the date and time of the hearing. If you move or change your phone number, tell us right away so that we can contact you.

For all other cases **NOT** involving a plan, we will send you a letter at least 10 calendar days before the hearing date with the date and time of your expedited hearing.

If State Hearings denies your request, we will tell you. We will also tell you of your regular hearing date and time. If you think we made a mistake or your situation changes, you can ask again. We may need proof of your reason.

Help with Your Case

You can have an authorized representative help you with your state hearing. If someone else helps you, this person or organization is called an Authorized Representative. Your authorized representative can be an attorney, a relative, a friend, or an organization.

You must let State Hearings know at or before your hearing if someone else is representing you. If we know this information before your hearing, we will send your authorized representative important notices about your state hearing.

You may wish to call your local Legal Aid office for help. A list of these Legal Aid organizations is on the State Hearings website. You may also call 411 and ask for the phone number of your local free Legal Aid organization.

Settlement of Your Case without a Hearing

DHCS or your plan may contact you or your authorized representative before your hearing and offer to fix the issues in your case. You have the choice to let DHCS or the plan try to fix the issues or you can go to your hearing. If you agree to let them fix your issues, DHCS or the plan must send a written agreement for you to sign. If you sign the agreement, you are agreeing to withdraw your hearing request in exchange for DHCS or the plan fixing your issues. This is called a Conditional Withdrawal agreement. It explains what DHCS or the plan has agreed to do to fix your issues. It also explains your rights. Please read this agreement carefully. If you agree, sign and return it to DHCS or the plan right away. If you do not agree, tell DHCS or the plan right away. It is your choice whether to enter into a settlement agreement or to go to the hearing.

If you reach an agreement with DHCS or the plan, tell State Hearings right away. You will not need a hearing if you reach an agreement.

The written agreement will tell you if DHCS or the plan needs more information or documents to try to fix your issues. The parties have 30 days to do what they agreed to do. This time may be longer to add the time for you to do anything you agreed to do.

When DHCS or the plan has carried out the agreement, they will send a new notice. If you disagree with the new notice, you can file a new hearing request. If DHCS or the plan does not give you a new notice telling you what it did, you can call 800-743-8525 or contact us by one of the ways listed below. We will look into this matter and follow up with you.

If you agreed to settle your case and did not go to your hearing, you can still change your mind and ask for a hearing. Contact us right away by any of the ways listed below. A judge may review whether you asked for the new hearing on time.

Canceling Your Hearing

You always have the right to have a neutral judge decide your state hearing. However, if you no longer want a hearing, please contact us right away by one of the ways listed below to cancel your hearing. This is called a Withdrawal of your request for a hearing. If we did not get the withdrawal in writing, we will send you a letter confirming you withdrew your case. If you still want the hearing, you must contact us within 15 days of the date we sent you the letter.

What Might Happen Before the State Hearing

A party may ask to have a judge decide if your case is the type of hearing we can review. This is called jurisdiction. If this happens, you will get a separate letter about that process. In some cases, there may first be a hearing with a judge to see if we can review your case. This is called a bifurcated hearing.

If we think your case is the type of case we cannot review, we will tell you why we think your state hearing should be dismissed. You will be able to tell us why your case should be heard. We will review what you tell us before making a decision whether to dismiss your state hearing.

About the Hearing

A judge from the California Department of Social Services will hear your case. This judge does not work for DHCS or the plan. You have the right to an in-person hearing with a judge.

We have different types of hearings:

- **Telephone** – judge calls you and the hearing is done over the phone.
- **On-Site Phone** - you go to the county office. The judge calls you at the county's office number and the hearing is done over the phone.
- **Video** – you see and hear the judge on your personal computer, laptop, tablet, or smart device. The other parties may participate by phone or video.
- **On-Site Video** - you go to the county office to use the county's video equipment. You see and hear the judge on a screen. The other parties may participate by phone or video.
- **In-Person** – you and the judge will be in the same room. The other parties may participate by phone.

State Hearings will tell you in advance when your hearing will take place. We will set your hearing to be held by telephone unless you have asked for an in-person hearing. If you want to change to another type of hearing, please call 800-743-8525 right away. If you change the type of hearing, we may have to reschedule the hearing. This may delay the hearing decision.

The hearing will include you and your representative (if you have one), a judge and a hearing representative from DHCS or the plan. Both sides can bring witnesses and documents. It is an informal hearing and is not open to the general public.

Postponements

If you think you have a good reason to postpone (delay) your hearing, please contact us by any of the ways listed below. We may need proof of your reason.

If we grant your request, we will reschedule the hearing. You must agree to extend the deadline for your hearing decision to get a postponement. This means your hearing decision will be delayed. If we agree you had a good reason for the postponement, any aid paid pending you are getting will continue. If we grant a postponement but you did not give a good reason, any aid paid pending your hearing may not continue.

Subpoenas

A subpoena is a judge's order telling a witness to come to the hearing or get documents. Contact State Hearings by one of the ways listed below for more information.

Right to Review Your Case Records

You have the right to review your case records and the rules that DHCS or the plan used in deciding your case. You may ask for copies of documents in your file. DHCS or the plan may charge a reasonable fee for the copies.

To ask for records for DHCS cases, you will need to fill out DHCS form number 6236 or 6237. You can find the form on the DHCS website at https://www.dhcs.ca.gov/Pages/Language_Access.aspx. You may also contact DHCS at (916) 636-1980. Once you fill out the form, you may send it to DHCS at the address listed on the form. DHCS will send you a response within 30 days. This time may be longer if the records are more than 6 years old.

To ask for records from your plan, contact your plan directly.

You can ask DHCS or the plan to interpret the documents written in English for free.

If you have problems getting access to the documents in your case file, contact State Hearings. Some records may be protected from being released. If this happens, you have the right to talk to the judge about this. If the judge decides the records cannot be released, they will not be used in your hearing.

Hearings for Persons with Disabilities

If you have a disability or impairment and need special arrangements so you can participate in your hearing, call State Hearings toll free at 1-855-795-0634. If you have a hearing or speech impairment, call (TDD) 1-800-952-8349.

Agency's Statement About its Action

DHCS or the plan must make a statement in writing explaining its action. This is called a "Statement of Position"(Statement). The statement must include the rules that apply to your case, information and

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documents that affect the case, and a list of witnesses. The Statement must be ready for you 2 working days before your hearing.

You let DHCS or the plan know how you prefer to get the Statement.

- You may arrange with DHCS or the plan to pick it up from an agreed location during business hours. Call them find out where they can make it available for you to pick up.
- You can ask DHCS or the plan if they can mail it to you
- You can ask DHCS or the plan to send it by fax or email
- If you choose to use your online account, the Statement must be available there

If the Statement is not ready 2 work days before the hearing or if you get new Statement less than two work days before your hearing:

- You can decide to go ahead with the hearing. If you did not get the Statement, you will get an oral summary of it at the hearing, **or**
- You can ask to postpone (delay) the hearing

What Happens at Your Hearing

Bring any documents or witnesses that will help you prove your case. If you are having trouble getting documents you need to prove your case, you can ask the judge to issue an order for the documents. (See Subpoena section above.)

You may also turn in a written statement explaining why you think the action by DHCS or your plan is wrong. If the hearing will be by telephone or video, you can send your written statement or documents to the judge before your hearing date. You can turn it in by any of the ways listed below.

At the hearing, you can tell the judge why you disagree with the action that DHCS or the plan took. A DHCS or plan representative will explain why it took the action. You and the representative may question each other and any of the witnesses. The judge may also ask questions. If you do not want to answer a question, you do not have to. However, if you do not give the judge the information needed, this may affect the decision.

You or your Authorized Representative must take part in the hearing. If you plan to have an Authorized Representative, you must let us know at or before your hearing.

If you do not appear at the hearing and no one appears for you, the judge will dismiss your case. If this happens, you may ask for another hearing within 30 days of getting the dismissal decision. If you ask for another hearing on the case, you will have to tell us a good reason why you did not attend the original hearing.

You will have a free interpreter at the hearing if you asked for one.

Please keep in mind that delays may happen on the hearing date. If there is a delay, your hearing may start late or end late.

If you move or change your phone number, tell us right away. If we cannot contact you, you may not get important information about your case. Call us at 800-743-8525 or contact us by one of the ways listed below.

After the Hearing

After the hearing, the judge will issue a decision. If your case was expedited, and the decision is in your favor, DHCS or the plan must carry it out within 72 hours. In all other cases, they must carry out the decision within 30 days from when you get the decision. If this does not happen, you can contact the State Hearings Division at (916) 309-3489 or toll free (800) 743-8525.

If you disagree with the judge's decision, carefully review the appeal rights included with your state hearing decision.

Non-Discrimination Policy

State Hearings complies with applicable Federal and State civil rights laws and does not discriminate. This means we do not discriminate on the basis of race, color, national origin, age, disability, sex, gender identity, gender expression, sexual preference, medical condition, or marital status. There are other anti-discrimination protections.

More information about discrimination complaints can be found in PUBLICATION 13 on the California Department of Social Services website or by contacting State Hearings by one of the ways listed below. If you think you have experienced discrimination, you may file your complaint by mail, email, or phone with:

Office of Civil Rights

Department of Health Care Services
P. O. Box 997413, MS 0009
Sacramento, CA 95899-7413
Phone: 916-440-7370
Email: CivilRights@dhcs.ca.gov

You may use the complaint form which is available online at:
https://www.dhcs.ca.gov/Pages/Language_Access.aspx. You can also get a form by calling the DHCS Ombudsman at 888-452-8609. The form has additional information about your rights.

Ways to Contact State Hearings

If you have any questions about this letter you may call 800-743-8525, or contact the State Hearings Division in one of the ways below:

- **Online Appeals Account:** <https://acms.dss.ca.gov/acms/>
- **Email:** ScopeOfBenefits@dss.ca.gov
- **Fax Number:** 833-281-0903
- **Mail To:** (Allow at least 5 days for mailing. Keep your originals.)
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